

OMB Control No: 0970-0114

Expiration date: 03/31/2027

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**Appendix 1: Lead Agency Implementation Plan
for**

State/Territory Hawaii

FFY 2025 – 2027

Version: Initial Plan

Plan Status: Approved as of 2024-11-09 00:49:24 GMT

For each non-compliance, Lead Agencies must describe the following:

- **Action Steps:** List the action steps needed to correct the finding (e.g., update policy manual, legislative approval, IT system changes, etc.). For each action step list the:
 - **Expected Completion Date:** List the expected completion date for the action step.
- **Overall Target Date for Compliance:** List date Lead Agency anticipates completing implementation, achieving full compliance with all aspects of the findings. (Note: Compliance will not be determined until the FFY 2025-2027 CCDF Plan is amended and approved).

ELIGIBILITY AND ENROLLMENT:CONTINUITY OF CARE (12-MONTH ELIGIBILITY)

Reason(s) for non-compliance:

- The Lead Agency does not always provide a minimum 12-month eligibility period for each child, as required by 98.21(a)(1). (Plan Question 2.5.2a)
- The Lead Agency does not appropriately allow temporary changes in work, training, education status, and does not allow a child to retain eligibility when turning 13 years old during the required 12-month eligibility period, as required by 98.21(a)(1)(ii)(A), 98.21(a)(1)(ii)(B), 98.21(a)(1)(ii)(C), 98.21(a)(ii)(D), and 98.21(a)(1)(ii)(F). (Plan Question 2.5.2b)

Overall Target Completion Date: 12/30/2026

Action Step Number	Action Step Description	Target Completion Date
1	The Lead Agency does not always provide a minimum 12-month eligibility period for each child, as required by 98.21(a)(1). (Plan Question 2.5.2a)	12/30/2026
2	Draft Hawaii Administrative Rule for sibling being added to a household with an existing 12-month eligibility period.	06/30/2025
3	Rule amendment routing process for adoption.	01/30/2026
4	System modification within the Hawaii Automated Network of Assistance (HANA) system.	12/30/2026
5	Sibling policy implemented.	12/30/2026
6	The Lead Agency does not appropriately allow temporary changes in work, training, education status, and does not allow a child to retain eligibility when turning 13 years old during the required 12-month eligibility period, as required by 98.21(a)(1)(ii)(A), 98.21(a)(1)(ii)(B), 98.21(a)(1)(ii)(C), 98.21(a)(ii)(D), and 98.21(a)(1)(ii)(F). (Plan Question 2.5.2b)	09/30/2025
7	Draft completed for Hawaii Administrative Rule allowing temporary changes in work, training, education status and allowing a child to remain	11/30/2024

	eligible when turning 13-year-old during the required 12-month eligibility period.	
8	Rule amendment routing process for adoption	06/30/2025
9	Policy implemented.	09/30/2025

ELIGIBILITY AND ENROLLMENT:ELIGIBILITY

Reason(s) for non-compliance:

- The Lead Agency does not have income limits based on the most recent SMI data that is published by the Bureau of the Census, as required by 98.20(a)(2)(i). (Plan Question 2.2.4e)

Overall Target Completion Date: 12/30/2026

Action Step Number	Action Step Description	Target Completion Date
1	Draft completed Hawaii Administrative Rules for income limits based on the most recent SMI data that is published by the Bureau of the Census.	11/30/2024
2	Rule amendment routing process for adoption.	01/30/2026
3	System modification with the Hawaii Automated Network of Assistance (HANA) system.	12/30/2026
4	Policy implemented.	12/30/2026

EQUAL ACCESS:AFFORDABILITY

Reason(s) for non-compliance:

- The Lead Agency does not limit all family co-payments to seven percent or less of family income, as required by 98.45(l)(3). (Plan Question 3.1.1a). Please note the Lead Agency has an approved waiver for this requirement through August 1, 2026.
- The Lead Agency does not provide data on the extent to which CCDF providers charge families additional amounts above the required co-payments (including data on the size and frequency of such amounts), as required by 98.45(b)(5). (Plan Question 3.1.2eii)

Overall Target Completion Date: 12/30/2026

Action Step Number	Action Step Description	Target Completion Date
1	The Lead Agency does not limit all family co-payments to seven percent or less of family income, as required by 98.45(l)(3). (Plan Question 3.1.1a)	12/30/2026
2	Waiver request to Office of Child Care.	12/30/2024
3	Draft completed for new sliding fee scale with 7% maximum co-payment and corresponding Hawaii Administrative Rule change.	11/30/2024
4	Rule amendment routing process for adoption.	01/30/2026
5	System modification within the Hawaii Automated Network of Assistance (HANA) system.	12/30/2026
6	Policy implemented.	12/30/2026
7	The Lead Agency does not provide data on the extent to which CCDF providers charge families additional amounts above the required co-payments (including data on the size and frequency of such amounts), as required by 98.45(b)(5). (Plan Question 3.1.2eii)	01/31/2025
8	Completed data request for providers to charge families additional amounts above the required co-payments (including data on the size and frequency of such amounts).	11/14/2024
9	Finalization of report on Committee On Planning and Projections (COPP).	01/31/2025

EQUAL ACCESS:PAYMENT RATES

Reason(s) for non-compliance:

- The Lead Agency's payment rates for infants in center-based care, infants in family child care homes, preschoolers in center-based care, and preschoolers in family child

care homes are not sufficient to ensure equal access, as required by 98.45(a). (Plan Question 4.3.2a)

Overall Target Completion Date: 12/30/2026

Action Step Number	Action Step Description	Target Completion Date
1	Market Rate Survey completed.	11/14/2023
2	Draft completed Hawaii Administrative Rule for payment rates for infants in center-based care, infants in family child care homes, preschoolers in center-based care, and preschoolers in family child care homes.	11/30/2024
3	Rule amendment routing process for adoption.	01/30/2026
4	System modification within the Hawaii Automated Network of Assistance (HANA) system.	12/30/2026
5	Policy implemented.	12/30/2026

EQUAL ACCESS:PROVIDER OPTIONS FOR PARENTS

Reason(s) for non-compliance:

- The Lead Agency does not provide grants or contracts for direct services for infants and toddlers, for children in underserved geographic areas, and for children with disabilities, as required by 98.30(b)(1). (Plan Questions 4.1.1c and 4.5.1i). Please note the Lead Agency has an approved waiver for this requirement through August 1, 2026.

Overall Target Completion Date: 07/01/2027

Action Step Number	Action Step Description	Target Completion Date
1	Waiver for compliance with the Child Care and Development Fund (CCDF) Plan Requirements related to the 2024 Final Rule. Providing grants or contracts for direct services for infants and toddlers, for children in underserved geographic areas, and for children with disabilities.	12/30/2024

2	Continue technical assistance from the Office of Child care for providing grants or contracts for infants and toddlers, for children in underserved geographic areas, and for children with disabilities.	06/30/2025
3	Prepare procurement (Request for Information, Request for Proposal).	08/01/2026
4	Implementation of contract	07/01/2027

EQUAL ACCESS:SUPPLY BUILDING STRATEGIES

Reason(s) for non-compliance:

- The Lead Agency does not adequately describe how they identify gaps in the supply of child care for children with disabilities or during non-traditional hours, as required by 98.16(x). (Plan Questions 4.5.4c and 4.5.4d)

Overall Target Completion Date: 07/01/2027

Action Step Number	Action Step Description	Target Completion Date
1	Continue and utilize technical assistance provided to assist Hawaii in developing strategies to identify gaps.	06/30/2025
2	Conduct a needs assessment to identify gaps in childcare for children with disabilities.	02/28/2026
3	Develop grants and contracts specifically for children with disabilities	04/01/2026
4	Prepare procurement (Request for Information, Request for Proposal).	08/01/2026
5	Implementation of contract	07/01/2027

HEALTH AND SAFETY:ONGOING TRAINING

Reason(s) for non-compliance:

- The Lead Agency does not have requirements for ongoing training on health and safety standards for licensed centers, licensed family child care providers, license-exempt centers, license-exempt family child care providers, or license-exempt in-home child care, as required by 98.44(b)(2)(i). (Plan Questions 5.6.1a, 5.6.1b, 5.6.1c, 5.6.1d, and 5.6.1f)
- The Lead Agency does not require an annual unannounced inspection for licensed centers or licensed family child care providers, or an annual inspection for license-exempt centers or license-exempt family child care providers for compliance with ongoing training on health and safety requirements, as required by 98.42(b)(2)(ii). (Plan Questions 5.5.1aii, 5.5.1bii, 5.5.2ai, and 5.5.2bi)

Overall Target Completion Date: 01/31/2025

Action Step Number	Action Step Description	Target Completion Date
1	Presented evidence of compliance to the Regional Team for review. Hawaii Administrative Rule, 17-892.2-61 Disaster Plan for emergencies. There is currently a requirement for the facility to complete practice drills at regular intervals, or whenever a new procedure has been added.	01/03/2025
2	Amend the Hawaii Administrative Rules to require annual Emergency Preparedness training to staff members.	12/31/2026
3	Conduct an annual unannounced inspection for compliance.	03/31/2027

HEALTH AND SAFETY:CHILD DEVELOPMENT

Reason(s) for non-compliance:

- The Lead Agency does not require pre-service or orientation training on child development for licensed centers, licensed family child care providers, license-exempt centers, license-exempt family child care providers, and license-exempt in-home providers, as required by 98.44(b)(1)(iii). (Plan Question 5.4.1i)
- The Lead Agency does not require an annual unannounced inspection for licensed centers and licensed family child care providers, or an annual inspection for license-exempt centers or license-exempt family child care providers for compliance with pre-service or orientation training requirements related to child development, as required by

98.42(b)(2)(i)(B) and 98.42(b)(2)(ii). (Plan Questions 5.5.1aii, 5.5.1bii, 5.5.2ai, and 5.5.2bi)

Overall Target Completion Date: 03/31/2026

Action Step Number	Action Step Description	Target Completion Date
1	The Lead Agency does not require pre-service or orientation training on child development for licensed centers, licensed family child care providers, license-exempt centers, license-exempt family child care providers, and license-exempt in-home providers, as required by 98.44(b)(1)(iii). (Plan Question 5.4.1I)	03/31/2026
2	Update Basic Health and Safety Practices: Child Care Provider's Guide to include: child development including major domains of cognitive, social, emotional, physical development and approaches to learning.	12/30/2025
3	Provide licensed centers, licensed family child care providers, license-exempt centers, license-exempt family child care providers, and license-exempt in-home providers with updated handbook and assessment. Addendum assessment to be completed by the child care provider and will be reflective in their Health & Safety training to validate that the training was completed.	03/31/2026
4	The Lead Agency does not require an annual unannounced inspection for licensed centers and licensed family child care providers, or an annual inspection for license-exempt centers or license-exempt family child care providers for compliance with pre-service or orientation training requirements related to child development, as required by 98.42(b)(2)(i)(B) and 98.42(b)(2)(ii). (Plan Questions 5.5.1aii, 5.5.1bii, 5.5.2ai, and 5.5.2b	03/31/2026
5	Update Basic Health and Safety Practices: Child Care Provider's Guide to include: child development including major domains of cognitive, social, emotional, physical development and approaches to learning.	12/30/2025

6	Provide licensed centers, licensed family child care providers, license-exempt centers, license-exempt family child care providers, and license-exempt in-home providers with updated handbook and assessment. Addendum assessment to be completed by the child care provider and will be reflective in their Health & Safety training to validate that the training was completed.	03/31/2026
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COMPREHENSIVE BACKGROUND CHECK:5 YEAR RENEWAL

Reason(s) for non-compliance:

- The Lead Agency does not conduct all background checks every 5 years, as required by 98.43(d)(2)(ii). (Plan Question 5.7.17)

Overall Target Completion Date: 06/30/2025

Action Step Number	Action Step Description	Target Completion Date
1	The Lead Agency does not conduct all background checks every 5 years, as required by 98.43(d)(2)(ii). (Plan Question 5.7.17)	06/30/2025
2	Received technical assistance on background checks from the Office of Child Care	12/06/2024
3	Contract completion for the Rapback program.	12/12/2024
4	Develop procedures for the Rapback program.	03/31/2025
5	All child care providers will be subscribed to the Rapback program.	06/30/2025

HEALTH AND SAFETY:PEDIATRIC FIRST AID AND PEDIATRIC CPR

Reason(s) for non-compliance:

- The Lead Agency has not established a standard for pediatric first aid or pediatric CPR for licensed centers, licensed family child care providers, license-exempt centers,

license-exempt family child care providers, license-exempt in-home providers, and out-of-school programs, as required by 98.41(a)(1)(x). (Plan Questions 5.3.10ai, 5.3.10aii, 5.3.10aiv, 5.3.10av, 5.3.10avi, 5.3.10avii, 5.3.10bi, 5.3.10bii, 5.3.10biv, 5.3.10bv, 5.3.10bvi, and 5.3.10bvii)

- The Lead Agency does not require pre-service or orientation training on pediatric first aid and pediatric CPR for licensed centers, licensed family child care providers, license-exempt centers, license-exempt family child care providers, and license-exempt in-home providers, as required by 98.44(b)(1)(i). (Plan Question 5.4.1j)

- The Lead Agency does not require an annual unannounced inspection for licensed centers and licensed family child care providers, or an annual inspection for license-exempt centers and license-exempt family child care providers for compliance with a standard for pediatric first aid and pediatric CPR and with related pre-service or orientation training requirements, as required by 98.42(b)(2)(i)(B) and 98.42(b)(2)(ii). (Plan Questions 5.5.1aii, 5.5.1bii, 5.5.2ai, and 5.5.2bi)

Overall Target Completion Date: 03/31/2026

Action Step Number	Action Step Description	Target Completion Date
1	The Lead Agency has not established a standard for pediatric first aid or pediatric CPR for licensed centers, licensed family child care providers, license-exempt centers, license-exempt family child care providers, license-exempt in-home providers, and out-of-school programs, as required by 98.41(a)(1)(x). (Plan Questions 5.3.10ai, 5.3.10aii, 5.3.10aiv, 5.3.10av, 5.3.10avi, 5.3.10avii, 5.3.10bi, 5.3.10bii, 5.3.10biv, 5.3.10bv, 5.3.10bvi, and 5.3.10bvii) • The Lead Agency does not require pre-service or orientation training on pediatric first aid and pediatric CPR for licensed centers, licensed family child care providers, license-exempt centers, license-exempt family child care providers, and license-exempt in-home providers, as required by 98.44(b)(1)(i). (Plan Question 5.4.1j)	03/31/2026
2	Update Basic Health and Safety Practices: Child Care Provider's Guide addendum to include: pediatric first aid or pediatric CPR for licensed centers, licensed family child care providers, license-exempt centers, license-exempt family child care providers, license-exempt in-home providers, and out-of-school programs, as required by 98.41(a)(1)(x).	12/30/2025

3	Provide licensed centers, licensed family child care providers, license-exempt centers, license-exempt family child care providers, and license-exempt in-home providers with updated handbook and assessment. Addendum assessment to be completed by the child care provider and will be reflective in their Health & Safety training to validate that the training was completed.	03/31/2026
4	The Lead Agency does not require pre-service or orientation training on pediatric first aid and pediatric CPR for licensed centers, licensed family child care providers, license-exempt centers, license-exempt family child care providers, and license-exempt in-home providers, as required by 98.44(b)(1)(i). (Plan Question 5.4.1j)	03/31/2026
5	Update Basic Health and Safety Practices: Child Care Provider's Guide pre-service or orientation training on pediatric first aid and pediatric CPR for licensed centers, licensed family child care providers, license-exempt centers, license-exempt family child care providers, and license-exempt in-home providers, as required by 98.44(b)(1)(i).	12/30/2025
6	Provide licensed centers, licensed family child care providers, license-exempt centers, license-exempt family child care providers, and license-exempt in-home providers with updated handbook and assessment. Addendum assessment to be completed by the child care provider and will be reflective in their Health & Safety training to validate that the training was completed.	03/31/2026
7	The Lead Agency does not require an annual unannounced inspection for licensed centers and licensed family child care providers, or an annual inspection for license-exempt centers and license-exempt family child care providers for compliance with a standard for pediatric first aid and pediatric CPR and with related pre-service or orientation training requirements, as required by 98.42(b)(2)(i)(B) and 98.42(b)(2)(ii). (Plan Questions 5.5.1aii, 5.5.1bii, 5.5.2ai, and 5.5.2bi)	03/31/2026
8	Update Basic Health and Safety Practices: Child Care Provider's Guide addendum to include: pediatric first aid or pediatric CPR for licensed centers, licensed family child care providers,	12/30/2025

	license-exempt centers, license-exempt family child care providers, license-exempt in-home providers, and out-of-school programs, as required by 98.41(a)(1)(x).	
9	Provide licensed centers, licensed family child care providers, license-exempt centers, license-exempt family child care providers, and license-exempt in-home providers with updated handbook and assessment. Addendum assessment to be completed by the child care provider and will be reflective in their Health & Safety training to validate that the training was completed.	03/31/2026

HEALTH AND SAFETY:POSTING INSPECTION REPORTS

Reason(s) for non-compliance:

- The Lead Agency does not post pre-licensing inspection reports for licensed centers or licensed family child care providers, as required by 98.33(a)(4). (Plan Question 5.5.4ai).
- The Lead Agency does not post full monitoring and inspection reports that include all areas of compliance and non-compliance for licensed centers, licensed family child care providers, license-exempt centers, license-exempt family child care providers, license-exempt in-home providers, and out-of-school programs, as required by 98.33(a)(4). (Plan Questions 5.5.4aii, 5.5.4b, 5.5.4c, 5.5.4d, and 5.5.4e). Please note the Lead Agency has an approved waiver for portions of this requirement through August 1, 2026.

Overall Target Completion Date: 09/30/2026

Action Step Number	Action Step Description	Target Completion Date
1	The Lead Agency does not post pre-licensing inspection reports for licensed centers or licensed family child care providers, as required by 98.33(a)(4). (Plan Question 5.5.4ai)	09/30/2026
2	Contractor to complete posting of pre-licensing inspection reports for licensed centers or licensed family child care providers, as required by 98.33(a)(4). (Plan Question 5.5.4ai) within the Child Care Provider Portal system.	09/30/2026

3	The Lead Agency does not post full monitoring and inspection reports that include all areas of compliance and non-compliance for licensed centers, licensed family child care providers, license-exempt centers, license-exempt family child care providers, license-exempt in-home providers, and out-of-school programs, as required by 98.33(a)(4). (Plan Questions 5.5.4aii, 5.5.4b, 5.5.4c, 5.5.4d, and 5.5.4e)	09/30/2026
4	Waiver request for posting full monitoring and inspection reports that include all areas of compliance and non-compliance for licensed centers, licensed family child care providers, license-exempt centers, license-exempt family child care providers, license-exempt in-home providers, and out-of-school programs, as required by 98.33(a)(4). (Plan Questions 5.5.4aii, 5.5.4b, 5.5.4c, 5.5.4d, and 5.5.4e)	12/30/2024
5	Contractor to complete posting of full monitoring and inspection reports that include all areas of compliance and non-compliance for licensed centers, licensed family child care providers, license-exempt centers, license-exempt family child care providers, license-exempt in-home providers, and out-of-school programs, as required by 98.33(a)(4). (Plan Questions 5.5.4aii, 5.5.4b, 5.5.4c, 5.5.4d, and 5.5.4e)	09/30/2026

PROGRAM INTEGRITY: EFFECTIVE INTERNAL CONTROLS

Reason(s) for non-compliance:

- The Lead Agency does not describe processes to train providers about program requirements and integrity, and does not use program integrity data to inform training for child care providers about program requirements and integrity, as required by 98.68(a)(3). (Plan Questions 10.1.5bi and 10.1.5biii)

Overall Target Completion Date: 03/31/2027

Action Step Number	Action Step Description	Target Completion Date
1	Technical assistance on processes to train providers about program requirements and integrity, and does not use program integrity data to inform training for child care providers about program requirements and integrity.	12/30/2025
2	Draft Hawaii Administrative Rule to describe processes to train providers about program requirements and integrity.	06/30/2026
3	Rule amendment routing process for adoption.	12/30/2026
4	Policy implemented.	03/31/2027

PROGRAM INTEGRITY:FRAUD INVESTIGATION, PAYMENT RECOVERY, AND SANCTIONS

Reason(s) for non-compliance:

- The Lead Agency does not have a process to identify program violations by providers, investigate and recover fraudulent payments from providers, or impose sanctions on providers in response to fraud, as required by 98.68(b)(1). (Plan Questions 10.2.1, 10.2.2b, and 10.2.2e)

Overall Target Completion Date: 03/31/2027

Action Step Number	Action Step Description	Target Completion Date
1	Technical assistance on process to identify program violations by providers, investigate and recover fraudulent payments from providers, or impose sanctions on providers in response to fraud.	12/30/2025
2	Draft Hawaii Administrative Rule to have a process to identify program violations by providers, investigate and recover fraudulent payments from providers, or impose sanctions on providers in response to fraud.	06/30/2026

3	Rule amendment routing process for adoption.	12/30/2026
4	Policy implemented.	03/31/2027

HEALTH AND SAFETY:PREVENTION AND RESPONSE TO EMERGENCIES FROM FOOD AND ALLERGIC REACTIONS

Reason(s) for non-compliance:

- The Lead Agency has not established a standard for the response to emergencies due to food and allergic reactions for licensed centers, licensed family child care providers, license-exempt centers, license-exempt family child care providers, license-exempt in-home providers, and out-of-school programs, as required by 98.41(a)(1)(iv). (Plan Questions 5.3.4bi, 5.3.4bii, 5.3.4biv, 5.3.4bv, 5.3.4bvi, and 5.3.4bvii)
- The Lead Agency does not require an annual unannounced inspection for licensed centers and licensed family child care providers, or an annual inspection for license-exempt centers and license-exempt family child care providers for compliance with a standard for the response to emergencies from food and allergic reactions, as required by 98.42(b)(2)(ii) and 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii, 5.5.1bii, 5.5.2ai, and 5.5.2bi)

Overall Target Completion Date: 03/31/2026

Action Step Number	Action Step Description	Target Completion Date
1	The Lead Agency has not established a standard for the response to emergencies due to food and allergic reactions for licensed centers, licensed family child care providers, license-exempt centers, license-exempt family child care providers, license-exempt in-home providers, and out-of-school programs, as required by 98.41(a)(1)(iv). (Plan Questions 5.3.4bi, 5.3.4bii, 5.3.4biv, 5.3.4bv, 5.3.4bvi, and 5.3.4bvii)	03/31/2026
2	Update Basic Health and Safety Practices: Child Care Provider's Guide addendum to include: for the response to emergencies due to food and allergic reactions for licensed centers, licensed family child care providers, license-exempt centers, license-exempt family child care providers, license-exempt in-home providers, and	12/30/2025

	out-of-school programs, as required by 98.41(a)(1)(iv). (Plan Questions 5.3.4bi, 5.3.4bii, 5.3.4biv, 5.3.4bv, 5.3.4bvi, and 5.3.4bvii)	
3	Provide licensed centers, licensed family child care providers, license-exempt centers, license-exempt family child care providers, and license-exempt in-home providers with updated handbook and assessment. Addendum assessment to be completed by the child care provider and will be reflective in their Health & Safety training to validate that the training was completed.	03/31/2026
4	The Lead Agency does not require an annual unannounced inspection for licensed centers and licensed family child care providers, or an annual inspection for license-exempt centers and license-exempt family child care providers for compliance with a standard for the response to emergencies from food and allergic reactions, as required by 98.42(b)(2)(ii) and 98.42(b)(2)(i)(B). (Plan Questions 5.5.1aii, 5.5.1bii, 5.5.2ai, and 5.5.2bi)	03/31/2026
5	Update Basic Health and Safety Practices: Child Care Provider's Guide addendum to include: for the response to emergencies due to food and allergic reactions for licensed centers, licensed family child care providers, license-exempt centers, license-exempt family child care providers, license-exempt in-home providers, and out-of-school programs, as required by 98.41(a)(1)(iv). (Plan Questions 5.3.4bi, 5.3.4bii, 5.3.4biv, 5.3.4bv, 5.3.4bvi, and 5.3.4bvii)	12/30/2025
6	Provide licensed centers, licensed family child care providers, license-exempt centers, license-exempt family child care providers, and license-exempt in-home providers with updated handbook and assessment. Addendum assessment to be completed by the child care provider and will be reflective in their Health & Safety training to validate that the training was completed.	03/31/2026

COMPREHENSIVE BACKGROUND CHECK:BACKGROUND CHECK PROCESSES

Reason(s) for non-compliance:

- The Lead Agency does not ensure background checks are completed within 45 days of the request, as required by 98.43(e)(1). (Plan Question 5.7.13a)
- The Lead Agency does not have a process to respond to other states' requests for interstate criminal history, Sex Offender Registry, and Child Abuse and Neglect Registry background checks, as required by 98.43(a)(1)(iii). (Plan Question 5.7.14b)
- The Lead Agency has not established a direct URL/website link that contains instructions on how child care providers and other States and Territories should initiate background check requests for prospective and current child care staff members, as required by 98.43(g). (Plan Question 5.7.15a)
- The Lead Agency does not post all the required information related to the interstate criminal background check, interstate sex offender registry check, or interstate child abuse and neglect (CAN) registry check on the consumer education website, as required by 98.33(a)(1)(iii) and 98.43(g). (Plan Questions 5.7.15b, 5.7.15c, and 5.7.15d)

Overall Target Completion Date: 12/30/2027

Action Step Number	Action Step Description	Target Completion Date
1	The Lead Agency does not ensure background checks are completed within 45 days of the request, as required by 98.43(e)(1). (Plan Question 5.7.13a) On-going technical assistance on background checks from the Office of Child Care. Clarification of the 45-day requirement from the Office of Child Care.	12/30/2025
2	Develop procedures for the licensing units to complete background checks within the 45-day requirement.	09/30/2025
3	System modification with the Hawaii Automated Network of Assistance (HANA) system to ensure that staff are completing background checks within 45-day requirement.	12/30/2027
4	The Lead Agency does not have a process to respond to other states' requests for interstate criminal history, Sex Offender Registry, and Child Abuse and Neglect Registry background checks, as required by 98.43(a)(1)(iii). (Plan Question 5.7.14b) On-going technical assistance on background checks from the Office of Child Care.	12/30/2025

5	Update language on the Department's website of instructions to request for checks. Update language on the Department's website to include Hawaii is a NFF state	03/31/2025
6	The Lead Agency has not established a direct URL/website link that contains instructions on how child care providers and other States and Territories should initiate background check requests for prospective and current child care staff members, as required by 98.43(g). (Plan Question 5.7.15a) On-going technical assistance on background checks from the Office of Child Care. Include statement (instructions) on the Department's website to include link to the Hawaii Criminal Justice Data Center (HCJDC) for requests.	03/31/2025
7	The Lead Agency does not post all the required information related to the interstate criminal background check, interstate sex offender registry check, or interstate child abuse and neglect (CAN) registry check on the consumer education website, as required by 98.33(a)(1)(iii) and 98.43(g). (Plan Questions 5.7.15b, 5.7.15c, and 5.7.15d) On-going technical assistance on background checks from the Office of Child Care. Hawaii Administrative Rule amendments for Background Checks (17-801) to include interstate checks.	06/30/2026
8	Hawaii Administrative Rule on Background Checks (17-801) adopted. (Target completion date: 12/31/26) Hawaii Automated Network of Assistance (HANA) system modification to include a data field to capture interstate checks. (Target completion date: 12/31/26). Interstate process to be included in the background check procedures on the Department's and Consumer Education website.	01/31/2027

COMPREHENSIVE BACKGROUND CHECK:INTER-STATE

Reason(s) for non-compliance:

- The Lead Agency does not require and conduct interstate criminal history background checks for any staff member (or prospective staff member) who resided in other state(s) in the past 5 years, as required by 98.43(b)(3)(i)(B), 98.42(b)(2)(i)(B), and 98.43(a). (Plan Questions 5.7.6a and 5.7.6b)
- The Lead Agency does not require and conduct interstate criminal history background checks for all individuals age 18 or older who reside in a family child care home and resided in other state(s) in the past 5 years, as required by 98.43(b)(3)(i)(B), 98.42(b)(2)(i)(B), and 98.43(a). (Plan Question 5.7.6c)
- The Lead Agency does not require and conduct interstate sex offender registry checks for any staff member (or prospective staff member) who resided in other state(s) in the past 5 years, as required by 98.43(b)(3)(ii), 98.42(b)(2)(i)(B), and 98.43(a). (Plan Questions 5.7.7a and 5.7.7b)
- The Lead Agency does not require and conduct interstate sex offender registry checks for all individuals age 18 or older who reside in a family child care home and resided in other state(s) in the past 5 years, as required by 98.43(b)(3)(ii), 98.42(b)(2)(i)(B), and 98.43(a). (Plan Question 5.7.7c)
- The Lead Agency does not require and conduct interstate CAN registry checks for any staff member (or prospective staff member) who resided in other state(s) in the past 5 years, as required by 98.43(b)(3)(iii), 98.42(b)(2)(i)(B), and 98.43(a). (Plan Questions 5.7.8a and 5.7.8b)
- The Lead Agency does not require and conduct interstate CAN registry checks for all individuals age 18 or older who reside in a family child care home and resided in other state(s) in the past 5 years, as required by 98.43(b)(3)(iii), 98.42(b)(2)(i)(B), and 98.43(a). (Plan Question 5.7.8c)

Overall Target Completion Date: 01/31/2027

Action Step Number	Action Step Description	Target Completion Date
1	The Lead Agency does not require and conduct interstate criminal history background checks for any staff member (or prospective staff member) who resided in other state(s) in the past 5 years, as required by 98.43(b)(3)(i)(B), 98.42(b)(2)(i)(B), and 98.43(a). (Plan Questions 5.7.6a and 5.7.6b) The Lead Agency does not require and conduct interstate criminal history background checks for all individuals age 18 or older who reside in a family child care home and resided in other state(s) in the past 5 years, as required by 98.43(b)(3)(i)(B), 98.42(b)(2)(i)(B), and 98.43(a). (Plan Question 5.7.6c)	01/31/2027

	The Lead Agency does not require and conduct interstate sex offender registry checks for any staff member (or prospective staff member) who resided in other state(s) in the past 5 years, as required by 98.43(b)(3)(ii), 98.42(b)(2)(i)(B), and 98.43(a). (Plan Questions 5.7.7a and 5.7.7b) The Lead Agency does not require and conduct interstate sex offender registry checks for all individuals age 18 or older who reside in a family child care home and resided in other state(s) in the past 5 years, as required by 98.43(b)(3)(ii), 98.42(b)(2)(i)(B), and 98.43(a). (Plan Question 5.7.7c) The Lead Agency does not require and conduct interstate CAN registry checks for any staff member (or prospective staff member) who resided in other state(s) in the past 5 years, as required by 98.43(b)(3)(iii), 98.42(b)(2)(i)(B), and 98.43(a). (Plan Questions 5.7.8a and 5.7.8b) The Lead Agency does not require and conduct interstate CAN registry checks for all individuals age 18 or older who reside in a family child care home and resided in other state(s) in the past 5 years, as required by 98.43(b)(3)(iii), 98.42(b)(2)(i)(B), and 98.43(a). (Plan Question 5.7.8c)	
2	Received technical assistance on background checks from the Office of Child Care	12/06/2024
3	Hawaii Administrative Rule amendments for 17-801 Background Checks to include interstate checks.	06/30/2026
4	Hawaii Administrative Rule amendments for 17-801 Background Checks adopted.	12/31/2026
5	System modification with the Hawaii Automated Network of Assistance (HANA) system to include a data field to capture inter-state background checks.	12/31/2026
6	Interstate process to be included in the background check procedures on the Department's Consumer Education website.	01/31/2027

CONSUMER EDUCATION:WEBSITE AND RESOURCES FOR PARENTS

Reason(s) for non-compliance:

- The Lead Agency does not certify the consumer education website includes all required elements and ensures the widest possible access to services for families who speak languages other than English or persons with disabilities, as required by 98.33(a). (Plan Questions 9.2.1i, 9.2.1ii, 9.2.1iii, 9.2.2ii, 9.2.2iii, 9.2.2iv, and 9.2.3ai)
- The Lead Agency does not post aggregate data on the number of serious injuries, number of deaths, number of substantiated child abuse instances that occurred in child care settings, or the total number of children in care for each provider category and licensing status, as required by 98.33(a)(5)(ii). (Plan Questions 9.2.5ai, 9.2.5aiii, and 9.2.5aiv)
- The Lead Agency does not provide a consumer statement to families participating in CCDF, as required by 98.33(d). (Plan Question 9.3.3)

Overall Target Completion Date: 12/31/2026

Action Step Number	Action Step Description	Target Completion Date
1	The Lead Agency does not certify the consumer education website includes all required elements and ensures the widest possible access to services for families who speak languages other than English or persons with disabilities, as required by 98.33(a). (Plan Questions 9.2.1i, 9.2.1ii, 9.2.1iii, 9.2.2ii, 9.2.2iii, 9.2.2iv, and 9.2.3ai)	06/30/2025
2	On going technical assistance with the Office of Child Care to address the required elements and ensures the widest possible access to services for families who speak languages other than English or persons with disabilities, as required by 98.33(a). (Plan Questions 9.2.1i, 9.2.1ii, 9.2.1iii, 9.2.2ii, 9.2.2iii, 9.2.2iv, and 9.2.3ai)	06/30/2025
3	Language included on the Child Care Provider Portal for interpretation services and for individuals with disabilities.	06/30/2025
4	The Lead Agency does not post aggregate data on the number of serious injuries, number of deaths, number of substantiated child abuse instances that occurred in child care settings, or the total number of children in care for each provider category and licensing status, as	12/31/2026

	required by 98.33(a)(5)(ii). (Plan Questions 9.2.5ai, 9.2.5aiii, and 9.2.5aiv)	
5	Hawaii Administrative Rule amendment to include the definition of serious injury and child abuse.	12/31/2025
6	Rule amendment routing process for adoption.	06/30/2026
7	Data collected and posted on Consumer Education website.	12/31/2026
8	The Lead Agency does not provide a consumer statement to families participating in CCDF, as required by 98.33(d). (Plan Question 9.3.3)	06/30/2025
9	Language included on Consumer Education website with statement to families participating in CCDF.	06/30/2025